

THE COURT OF SENIOR CIVIL JUDGE & ADDL. M.A.C.T.

SIRSI

Present: Smt. Sunitha,

B.Com., LL.M.PGDFsc

Senior Civil Judge & Addl. M.A.C.T.
Sirsi.

M.V.C. No. 635/ 2018

Dated: 16th day of September 2019

Petitioner:

Kumari Deepa Krishnamurthy Tadas,
Age: 20 years, Occ: Student,
R/o: Kasturba Nagar, Sirsi.

(By: Sri. H. R. Hegde, Adv.)

V/s

Respondent:

1. The Divisional Controller,
NWKRTC, Sirsi Division, Sirsi.
Owner of the Bus bearing Reg.
No.KA-31-F-1252.
2. M.D. NWKRTC,
Central Office Gokul Road,
Hubli.
3. Manjunath S/o Shivappa Ranoji,
Age: 40 years, Occ: NWKRTC Driver,
Sirsi, Depot, R/o: Kalakoppa-Pala,
Po: Pala, Tq: Mundgod.

(By: Sri. S.M.Deshbandari, Adv.)

Date of institution of petition	10-12-2018
Nature of the petition	For compensation

Date on which the judgment was pronounced	16-09-2019						
Duration of the petitions	<table><tr><td><u>Year/s</u></td><td><u>Month/s</u></td><td><u>Day/s</u></td></tr><tr><td>-00-</td><td>-09-</td><td>-06-</td></tr></table> (Smt. Sunitha) Senior Civil Judge and Member, Addl. MACT, Sirsi,	<u>Year/s</u>	<u>Month/s</u>	<u>Day/s</u>	-00-	-09-	-06-
<u>Year/s</u>	<u>Month/s</u>	<u>Day/s</u>					
-00-	-09-	-06-					

JUDGMENT

This case is filed by petitioner under Sec.166 of MV Act R/W 232 of KMV Rules for seeking compensation of Rs.80,00,000/- for the accidental injuries sustained by her in the motor vehicle accident.

2. The brief facts of the petitioners' case are summarized as under:

That on 25-07-2018 the minor daughter of 1st petitioner namely Apoorva D/o Krishnamurthy Tadas was proceeding in the Motorbike bearing Reg. No.KA-31-L-3773 in Sirsi – Hubli road along with her father Krishnamurthy and her sister Deepa, and Krishnamurthy was riding his bike slowly, cautiously and carefully on his proper side. When they reached near Port Hotel on Sirsi-Hubli road, a NWKRTC bus bearing Reg. No.KA-31-F-1252 came from the opposite direction in wrong side with great speed and negligent manner and dashed to the Motorbike on which Apoorva D/o Krishnamurthy Tadas and Deepa were proceeding. As a result of this accident, Apoorva was died on the spot, petitioner and Krishnamurthy were shifted to Government hospital

Sirsi, and from there they were shifted to Hubli Hubli KIMS and admitted there.

3. As inspite of the treatment she not responded positively, therefore she was shifted from KIMS hospital to Shivaleela Foundation's Super Speciality hospital, Hubli and admitted there as an indoor patient in ICU for long time and underwent for many surgical operations. Inspite of better treatment, she is not recovered properly, till today she is under treatment. And she has spent more than Rs.5,00,000/- for her medical and other expenses and also spent for transportation, food and nutrition, attendants. Again she requires huge amount for her future treatment and she is still under treatment.

4. It is stated at the time of accident she was 19 years and studying D.Ed. But due to this accident she lost her future, marriage prospect, job and education.

5. Due to this accident petitioner is not able to do any kind of her day today work and she is totally depending upon others and she is feeling discomfort, mental pressure etc. She has lost her student life. And due to this accident she is permanently disabled and she has lost her right eye.

6. And she further stated at the time of accident she was hale, healthy and pretty girl and she is unmarried. Due to the accidental injury her face is become disfigured and she lost her marriage prospect. Therefore this petition is filed for seeking compensation of Rs.80,00,000/- towards operation and medical charges, Hospital charges, special food and nutrition charges, transportation charges,

disability, disfigurement, mental shock, pain, agony and suffering, loss of future income, loss of education, expenses of future surgery, attendant charges, loss of marriage prospects, loss of employment, loss of right eye and other charges and future prospects.

7. It is alleged the accident in question took place only due to the rash and negligent driving of NWKRTC Bus bearing Reg. No.KA-31-F-1252. Hence she filed petition against the respondent No.1 and 2 who are the owner and insurer, and respondent No.3 who is the driver of the said vehicle, are joint and severally liable to pay compensation of Rs.80,00,000/- for the injury sustained with the interest at the rate of 12% p.a. from the date of the accident till realization.

8. The respondent appeared and filed his written statement. Wherein he denied the manner of accident stated in the petition and contended that the alleged accident was taken place in the rainy season, and the pillion rider of the bike was holding an umbrella to avoid the rain fall. And the driver of the bus bearing Reg. No. KA-31-F-1252, on the date of the accident was driving the bus on his proper side, by observing all the traffic rules and regulations. On the other hand the deceased Motor Bike rider was coming from opposite direction along with the deceased and other two pillion rider with rash and negligent manner and suddenly by seeing the bus could not control speed of the bike and at the same time due to holding of umbrella to avoid the rain it obstructed from riding the motor cycle. As a result he has dashed against the bus and caused the accident. Hence the bike owner and insurer are necessary party to this petition without whom the petition is not

maintainable.

9. It is contended the rider of the Motorbike was not holding valid DL at the time of alleged accident and due to his own negligence the accident has occurred. Thus respondent is not liable to pay any compensation to the petitioners and interim compensation paid by them to the petitioners on humanity ground at the time of accident has to be refunded to the respondent. Accordingly on all these grounds prays for dismissal of the petition.

10. On the basis of the pleading of the petitioner the following issues arise for consideration:

ISSUES

- 1. Whether the petitioner proves on 25-07-2018 at about 08-45 a.m., when she was proceeding in Motor Cycle bearing Reg. No.KA-31-L-3773, along with her father and sister, near Port hotel on Sirsi Hubli Road, she met with an accident due to the rash and negligent driving of Bus, bearing Reg. No.KA-31-F-1252 by its driver and sustained injury?**
- 2. Whether the respondent No.1 made out any grounds to discharge from the liability?**
- 3. Whether the petitioner is entitled for the compensation as claimed by her, if so what is the quantum and from whom?**
- 4. What order or award?**

11. To substantiate the case of the petitioner, the mother of the petitioner deposed before the court as P.W.1 and got marked 21 documents as Ex.P-1 to 21 and another witness examined as PW-2. Per contra the driver of the bus examined as RW-1 on behalf of respondent and produced one document marked as Ex.R-1 and closed their side.

12. Heard arguments. On hearing and on perusal of the relevant materials on record, my findings on the above issues are as under:

Issues No.1: In the affirmative

Issues No.2: In the Negative

Issues No.3: In the Partly Affirmative

Issues No.4: As per final order, for the following:-

REASONS

13. **Issue No.1 and 2(In MVC No. 636/2018 and 637/2018):-**

It is the specific allegation of the petitioners that the accident in question was occurred solely due to the rash and negligent driving of the bus by its driver. To prove this allegation the mother of petitioner by filing an IA under order 32 rule 15 of CPC along with medical certificate sought permission to act as next friend of petitioner since she is mentally disturbed, and since no objection was filed to the said application the same was allowed and mother is permitted to act as next friend of petitioner. Accordingly she is examined as pw1 and she has relied upon the police records which are marked from Ex.P-1 to 6 i.e. FIR, Complaint, Charge Sheet, Spot Hand Sketch, Wound Certificate and Photos. Wherein it is clearly stated accident is taken place due to the

rash and negligent driving of the Bus bearing Reg. No.KA-31-F-1252. On the other hand respondent denied its negligence in causing the accident and contended the driver of the bus was driving the bus slowly on his side but the deceased Motor Bike rider was coming from opposite direction along with his daughters with rash and negligent manner and suddenly by seeing the bus he could not control the speed of the bike and one of the pillion rider was holding an umbrella to avoid the rain falling on the deceased which obstructed him from riding the vehicle and as a result motorbike dashed against the bus and caused the accident. But on careful perusal of the complaint which is filed by one of the eye witness who stated to be proceeding in his vehicle behind the deceased vehicle, where in the complaint he has not stated anything about raining and holding of umbrella by the pillion rider and the Ex.P-4 spot sketch also does not show the umbrella was lying on the spot. And the respondents not produced the panchanama to show pillion rider was holding the umbrella while proceeding in the Motor Cycle. Further the driver of the bus who examined as RW-1 though reiterated the written statement averments during the course of cross examination he has admitted since he could not reach Sirsi in time, he came in the road other than the regular road one mentioned or indicated in the guideline. As such it is clear that the driver of the bus was in hurry to reach Sirsi and he himself came in rash and negligent manner and dashed against the motor cycle. And further RW-1 has admitted the charge sheet is filed against him and departmental enquiry also been held against him.

14. Further in the written statement he has stated he paid interim compensation of Rs.15,000/- each to the petitioners family. If really accident was not taken place due to the negligence on the part of the driver of the bus they would not have paid the interim compensation to the petitioners family. Which indicates they indirectly admit the negligence on their part in causing the accident. Under such circumstances in the absence of any cogent rebuttal materials in this regard, the only inference which is to be drawn is that the accident in question was the outcome of the rash and negligent driving of the NWKRTC bus. In respect of the other contention that deceased was not having driving licence is concerned the PW-1 has produced Ex.P-11 which is valid. In the consequence I hold respondents have not made out any ground to discharge from the liability. Therefore I answer this **Issue No.1 in the affirmative and Issue No.2 in the Negative.**

15. Issue No.3: The PW-1 has claimed global compensation at Rs.80,00,000/- from the respondent. Now the question would arise whether the petitioner sustained injury in the said accident and her entitlement for global compensation of Rs.80,00,000/- as sought in the petition. It is relevant to note that petitioner has produced Ex.P-5 to 19 which are the Wound Certificate, Photo, Discharge Cards, Disability Certificate, letters given by Neurosurgeon, Medical Bills, Prescriptions, OPD case Sheets and X-Rays etc. From Ex.P-5 and 7 it is revealed that petitioner sustained Fracture of right Femur, Fracture of right zymatic maxilla bone, Multiple fractures of inner and outer tables of frontal sins, Fracture of right hand, fracture of roof lateral wall of right orbit, fracture of right greater wing of sphenoid sinus,

Fracture of bony nasal septum, squamous part of left temporal bone and left lateral wall of sphenoid sinus, fracture of ramus of mandible on left side, Bilateral maxillary, frontal ethmoid and sphenoid hem sinus noted, right peribital and premaxillary soft tissue edema, TM joint alignment maintained bilaterally and right vision is slightly damaged, as well as head injury. Thus the information available in Ex.P-7 sufficient to conclude petitioner sustained some grievous injuries in the said road traffic accident. Therefore she is entitled for compensation under following heads:

Non pecuniary damages :

(i) Towards pain and sufferings:

The medical record relied upon by the PW-1 is Wound Certificate and Discharge Card which reveals nature of injury sustained by her is grievous in nature. Further from the Wound Certificate and discharge summary it appears doctor has diagnosed she has sustained, Fracture of right Femur, Fracture of right zygomatic maxilla bone, Multiple fractures of inner and outer tables of frontal sinus, Fracture of right hand, fracture of roof lateral wall of right orbit, fracture of right greater wing of sphenoid sinus, Fracture of bony nasal septum, squamous part of left temporal bone and left lateral wall of sphenoid sinus, fracture of ramus of mandible on left side, Bilateral maxillary, frontal ethmoid and sphenoid hem sinus noted, right peribital and premaxillary soft tissue edema, TM joint alignment maintained bilaterally and right vision is slightly damaged, as well as head injury. Having regard to the nature of the injuries sustained by her it could be

said that she must have under gone physical pain and suffering and therefore I deem it just and proper to award her reasonable sum of **Rs.1,00,000/-**.

Pecuniary Damages:

(ii) Towards medical expenses:

P.W.1 claims to have incurred more than Rs.5,00,000/- for his treatment, but cash bill which produced as per Ex.P-11 shows she has spent only Rs.1,75,573/-. These medical bills are not disputed by the respondents and hence they could be relied on. Therefore, I deem it just and proper to award entire bill amount of **Rs.1,75,580/-** under this head.

(iii) Towards Food, nourishment and attendance charges etc:

As per Ex.P-7 it shows petitioner was inpatient for Twenty-four days, during that period she must have spent additional amount towards food, nourishment and attendant charges, for herself and her family members etc. Hence I deem it just and proper to award her a reasonable sum of **Rs.20,000/-** under this head.

(iv) Towards Transportation charges: As per Ex.P-7 it shows petitioner was inpatient for Twenty-four days, during which period she must have spent additional amount for transportation for herself and family members. Hence I deem it just and proper to award him a reasonable sum of **Rs. 20,000/-** under this head.

(v) Towards loss of future earning capacity on account of permanent disability:

PW-1 has alleged that the accidental injuries have rendered petitioner permanently disabled. In this regard she has relied upon the

testimony of P.W.2 who has issued her disability certificate, which is marked at Ex.P-9. The P.W.2 deposed petitioner who is aged about 19 years sustained Fracture of right femur, fracture of right zymatic bone, Multiple fractures of inner and outer tables of frontal sinus, fracture of right hand, fracture of roof lateral wall of right orbit, fracture of right greater wing of sphenoid sinus, fracture of bony nasal septum, squamous part of left temporal bone and left lateral wall of sphenoid sinus, fracture of ramus of mandible on left side, bilateral maxillary, frontal ethmoid and sphenoid hemosinus noted, right preribital and premaxillary soft tissue edema, TM joint alignment maintained bilaterally, and right vision is slightly damaged, as well as head injury. She undergone surgery on 01-08-2018 and 02-08-2018 for the fractures and inserted the plates to her chin, and undergone surgery for her forehead and fixed a pipe in the place, where the nerve was damaged. And also had surgery facial fractures and inserted necessary plates and screws and had surgery to right femur bone and inserted a rod fixing with screws and plates in right leg. And she was discharged on 20-08-2018 with advice to continue the medicine and follow-up treatment. Thereafter she came for follow-up treatment on 03-01-2019, with complaint of right knee limb pain, difficulty in walking. Therefore she is examined again and one more surgery was conducted and distal blocking bolt removal was done . He further deposed one more operation is requires to be conducted for which she requires additional expenses of Rupees two and half lakh.

He further deposed on 21-06-2019 petitioner was brought to their hospital and conducted clinical examinations and he stated though

femur fracture was healed there is shortening of leg and pain in the right knee. As a result she is facing difficulty to walk, sit, run, climb steps, difficulty to squat on floor, difficulty in sitting cross leg on particular limb. And she is not able to walk properly and she is limping while walking. And without the support of walking stick she is not able to walk for some distance. And looking all this he has assessed 15% disability of right lower limb.

He further deposed she has disfigurement of face due to conducting multiple surgery to facial bone, fracture and frontal bone fracture. And due to head injury and due to chronic head ache she has mild memory disturbance and for all these he has assessed additional 15% disability. And it would cause disability to whole body. He has stated if the noted particulars parts are not performing properly, and it is disabled, then automatically function of body is loose same extent. Therefore he assessed petitioner is having 30% permanent physical and functional disability.

And though disability assessed by P.W.2, has been seriously disputed by the contesting respondent and subjected for cross examination nothing worth is elicited to show this disability would not affect her future life. Therefore in the given fact and circumstances of the case it could be said that she has sustained permanent functional disability to an extent of 30%. However doctor has not stated anything about loss of right eye.

As regarding the earning of P.W.1 she is stated to be student and she was studying D.Ed. And due to this accidental injury and memory

disturbances and due to sever headache and being in heavy stress and mental torture which had affected her studies and she could not pursue her education. Thereby her future carrier is at stake. This fact is not denied by the respondent. Therefore her notional income is assessed at Rs.6,000/- p.m. which would be Rs.72,000/- p.a. As regards her age, the available admitted records particularly her Wound Certificate marked at Ex.P-5 reveals she is aged 19 years. If it were to be considered as her age then the proper operative multiplier as laid down in **Sarla Verma's** case would be 18, for the persons between the age group of 15-20 years. By applying this multiplier to the above annual income and percentage of disability which I have assessed at 30%, the total loss of future earning capacity would come to **Rs.3,88,800/-** which shall be awarded under this head.

(vi) Towards loss of amenities:

It appears from the medical record that she sustained, Fracture of right Femur, Fracture of right zymatic maxilla bone, Multiple fractures of inner and outer tables of frontal sins, Fracture of right hand, fracture of roof lateral wall of right orbit, fracture of right greater wing of sphenoid sinus, Fracture of bony nasal septum, squamous part of left temporal bone and left lateral wall of sphenoid sinus, fracture of ramus of mandible on left side, Bilateral maxillary, frontal ethmoid and sphenoid hemosinus noted, right prerbital and premaxillary soft tissue edema, TM joint alignment maintained bilaterally and right vision is slightly damaged, as well as head injury. Having regard to the nature of the injuries sustained by P.W.1 it could

be said that she must have undergone some kind of physical and mental pain and suffering which would consequently deprive her of comforts of life for which I award an amount of **Rs.1,00,000/-** under this head.

(vii) Towards Disfigurement

Petitioner has stated due to accidental injury her faces become disfigured and thereby she has lost her marriage prospect. And in this regard even the doctor who examined as PW-2 stated she has disfigurement of face due to surgery to facial bone. And he has clearly stated permanent disability suffered by the petitioner would be restriction on the enjoyment of her life and study as well. She has the injured resulted in to facial disfigurement as she suffered face bone fracture. From the evidence of the doctor it is clear that whole life she has to face hard realities of the society due to facial disfigurement. The facial beauty is to be given paramount importance in the Indian society. And admittedly this petitioner has suffered loss of facial beauty.

It cannot be over look that due to suffering of permanent disability facial disfigurement reduction of facial beauty the marriage prospectus of the petitioner have been specifically denied. At the time of the accident she was a young girl of 19 years and the facial beauty of young unmarried girl play a vital role in matrimonial prospectus in the Indian Society. Therefore it is just and necessary to award a sum of **Rs.1,00,000/-** under this head.

viii) Towards Future Expenses:

The petitioner stated some more surgery is to be conducted and for which she requires another sum of 4 to 5 lakhs. In this regard

though even PW-2 stated another surgery is to be made and for which she requires Rs. 2,50,000/- he has not clearly stated and what surgery is required to be conducted . However it appears from the evidence of PW-2 that while conducting surgery plates and screw were inserted. And for removal of the same it is just and necessary to award sum of Rs.30,000/-under this head.

16. Thus the petitioner in this case shall be awarded compensation amount under the various heads as stated below:

01. Towards pain and sufferings.	Rs.	1,00,000-00
02. Towards medical expenses.	Rs.	1,75,580-00
03. Towards Food, nourishment charges	Rs.	20,000-00
04. Towards Transportation charges	Rs.	20,000-00
05. Towards loss of future earning capacity on account of permanent disability	Rs.	3,88,800-00
06. Towards loss of amenities	Rs.	1,00,000-00
07. Towards Disfigurement	Rs.	1,00,000-00
08. Towards Future Expenses	Rs.	30,000-00
Total		Rs. 9,34,380-00

17. Thus, P.W-1 shall be awarded a total compensation of **Rs.9,04,380/-** together with cost of the petition and interest at the rate of **6% p.a.** from the date of the petition till the realization of the amount + **Rs.30,000/-** towards future expenses. Hence I answer this issue in favour of the petitioner **in the partly affirmative.**

18. **Issue No.4**:- In the light of the findings given on the above points, I hereby proceed to pass the following:-

-: ORDER :-

The claim petition filed by the petitioner U/s 166 of M.V Act is hereby partly allowed with costs.

The petitioner is held entitled to a compensation of Rs.9,04,380/- together with interest at the rate of 6% p.a. from the date of the petition till the realization of the amount + Rs. 30,000/- towards future expenses.

The respondent No.1 and 2 are held jointly and severally liable to compensate the petitioner and the first respondent is directed to deposit the above compensation amount before the office of the court within two months from the date of this award.

Out of the compensation amount of Rs.7,00,000/- shall be invested as FD in the name of petitioner in any nationalized or schedule bank till she recovers from the mental disturbance and remaining amount of Rs. 2,04,380/- shall be released with interest and Rs.30,000/- in favour of Next Friend of petitioner by name Nagaratna by way of an account payee cheque on proper identification to meet any medical expenses of petitioner.

Advocate's fee shall be fixed at Rs.1,000/-.

Draw award accordingly.

(Dictated to the Stenographer, directly on computer revised, corrected by me and then pronounced in the open court on this **16th day of September 2019**)

(Smt. Sunitha)

Senior Civil Judge & Member
Addl. MACT Sirsi,

ANNEXURE

WITNESSES EXAMINED ON BEHALF OF PETITIONER/S :-

P.W-1	:	Smt. Nagaratna W/o Krishnamurthy Tadas	10-07-2019
P.W-2	:	Dr. Praveen Saligoudar, Consultant Neurosurgeon, Shivaleela Foundations, Hubli, Super Speciality Hospital.	24-08-2019

DOCUMENTS GOT MARKED ON BEHALF OF PETITIONER/S:-

Ex.P-1	:	True copy of FIR date: 25-07-2018	10-07-2019
Ex.P-2	:	-do- Complaint	-do-
Ex.P-3	:	-do- Charge Sheet	-do-
Ex.P-4	:	-do- Spot Hand Sketch	-do-
Ex.P-5	:	-do- Wound Certificate	-do-
Ex.P-6	:	Photo	-do-
Ex.P-7&8	:	Discharge Cards	-do-
Ex.P-9	:	Disability Certificate	-do-
Ex.P-10	:	Letter given by Doctor	-do-
Ex.P-11	:	Hospital Bills and Medical Bills	-do-
Ex.P-12	:	Prescriptions	-do-
Ex.P-13 to 15:	:	OPD Case Sheets	-do-
Ex.P-16 to 19:	:	X-Ray Films	-do-
Ex.P-20	:	Notarized copy of Conduct Certificate	-do-
Ex.P-21	:	-do- Ration Card	-do-

WITNESSES EXAMINED ON BEHALF OF RESPONDENT/S:-

R.W-1 : Manjunath Shivappa Ranoji 04-09-2019

DOCUMENTS GOT MARKED ON BEHALF OF RESPONDENT/S:-

Ex.R-1 : Authorization letter 04-09-2019

**Senior Civil Judge & Member
Addl. MACT Sirsi.**